

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Estate of Daniel Edward Gobeil

23PR000345

FIRST AND FINAL REPORT OF ADMINISTRATOR AND PETITION FOR ITS SETTLEMENT, FOR ALLOWANCE OF STATUTORY COMPENSATION TO ADMINISTRATOR AND ATTORNEYS AND FOR FINAL DISTRIBUTION

TENTATIVE RULING: The petition is GRANTED, including fees as prayed. The December 03, 2026 Status Hearing Re: Final Distribution is therefore VACATED.

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Estate of Wayne Milton Fullner

26PR000157

PETITION FOR LETTERS OF ADMINISTRATION AND AUTHORIZATION TO ADMINISTER UNDER THE INDEPENDENT ADMINISTRATION OF ESTATES ACT

TENTATIVE RULING: The Petition is GRANTED. Michael Torr is appointed as probate referee. The matter is set for a Status Hearing Re: Final Distribution on August 18, 2027, at 8:30 a.m. in Dept. B. The Status Hearing may be vacated or continued without appearances needed if, prior thereto, the personal representative files a petition for an order for final distribution or a report of status of administration pursuant to Probate Code section 12200.

Petitioner will need to submit Proposed order (DE-140) and Proposed letters (DE-150) for the Court's signature. The Clerk is directed to provide notice to the parties.

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Travelers Casualty Insurance Company of America et al v. Richard Lynn Cox et al

25CV002519

PLAINTIFF TRAVELERS CASUALTY INSURANCE COMPANY OF AMERICA'S MOTION TO COMPEL DEFENDANT'S RESPONSES TO FORM INTERROGATORIES, SPECIAL INTERROGATORIES, AND REQUESTS FOR PRODUCTION

TENTATIVE RULING: The motion is GRANTED, except the request for sanctions is DENIED. Defendants are ordered to serve, within 20 calendar days from Notice of Entry of Order, verified code-compliant responses without objection to the Subject Discovery (defined below). Plaintiff is directed to provide Notice of Entry of this Order.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies

forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff Travelers Casualty Insurance Company of America (“Plaintiff”) moves for an order compelling Defendants Richard Lynn Cox (“Cox”) and Cork Distributors, LLC (“Cork Distributors”) (collectively “Defendants”) to serve verified responses, without objection, to Plaintiff’s Form Interrogatories (Set One), Special Interrogatories (Set One), and Requests for Production of Documents (Set One) (collectively, “Subject Discovery”). Plaintiff further moves for an order that Defendants and their attorneys, David A. Poull and Shashini B. Gamage of the law firm Cannon & Nelms, P.C., pay the total sum of \$5,410.00, representing Plaintiff’s reasonable attorneys’ fees and costs incurred in bringing this motion.

If a party to whom interrogatories or requests for production of documents were directed fails to serve a timely response, the responding party waives all objections and the propounding party may move for an order compelling responses and for a monetary sanction. (Code Civ. Proc., §§ 2030.290, subds. (a)-(c), 2031.300, subds. (a)-(c).) All that need be shown in the moving papers is that a set of interrogatories or request for production was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (Weil & Brown, Cal. Practice Guide, Civ. Proc. Before Trial (The Rutter Group 2022), Ch. 8F, § 8:1140, p. 8F-59, citing *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905-06.)

Plaintiff submits evidence demonstrating that the Subject Discovery was properly propounded and timely responses were not served. (Declaration of Joshua E. Kirsch (“Kirsch Decl.”) at ¶¶ 2-5, 8, 11.) Thus, Defendants shall serve verified code-compliant responses, without objections. (Code Civ. Proc., §§ 2030.290, subd. (a)-(b), 2031.300, subd. (a)-(b).)

There is no Opposition on file by Cork Distributors.

Cox filed an Opposition, in which he requests that the Court (1) relieve him from the waiver of objections, (2) if the Court is inclined to impose sanctions, to direct them solely to Cox’s former counsel only, and (3) grant 32 days (until September 6, 2026) to provide responses. Cox’s Opposition is based on issues regarding the association/substitution of Cox’s current counsel. To summarize, Defendants’ joint counsel of record from filing their Answer on January 12, 2026 until June 30, 2026 was Attorneys David A. Poull and Shashini B. Gamage of Cannon & Nelms, P.C. On June 30, 2026, an Association of Attorneys was filed, which, as Cox clarifies in Opposition, substituted Attorney Ryan W. Alley in as counsel of record for Cox, while Attorneys Poull and Gamage continued, and continue, to serve as counsel of record for Cork Distributors.

The Subject Discovery was propounded on Defendants February 3, 2026 (Kirsch Decl., ¶ 2.) Extensions until April 6, 2026, May 6, 2026, and June 4, 2026 were granted upon Defendants’ counsel’s requests made on March 5, 2026, April 6, 2026, and May 5, 2026, respectively. (*Id.*, ¶¶ 3-5.) Between May 26, 2026 and June 15, 2026, Plaintiff’s counsel reached

out to Defendants’ counsel no less than four times to understand whether or not new counsel would be substituting in, of which topic Plaintiff’s counsel was aware from the May 13, 2026 Case Management Conference. (*Id.*, ¶¶ 7-10, Exh. I.) Plaintiff’s counsel’s requests for information were met with silence. (*Ibid.*)

Cox’s Opposition describes innerworkings between his present and former counsel from shortly after the Answer was filed in January 2026 until the Association of Attorneys was filed on June 30, 2026, in an attempt to explain that Cox’s legal representation was in flux during that time. Cox offers no explanation for why, during that timeframe, his former counsel did not respond to Plaintiff’s counsel’s inquiries regarding the status of the Defendants’ representation or why his current counsel did not, at the very least, informally reach out to Plaintiff’s counsel to identify himself in light of the anticipated formal substitution and apparent difficulties in formally associating in as counsel. Had Cox’s current counsel done so, he perhaps would have become aware of the outstanding discovery.

The Court does not find that these circumstances warrant relief from Cox’s waiver of objections. Nor did Cox properly request such relief. (See §§ 2030.290, subd. (a)(1)-(2), 2031.300, subd. (a)(1)-(2).) These circumstances warrant granting Cox until September 6, 2026 to provide substantive responses. While these circumstances might support Cox’s request that the sanctions be directed solely at Cox’s former counsel, this request appears moot, as Plaintiff does not request sanctions against Cox’s current counsel. Moreover, Plaintiff’s request for sanctions is DENIED for failure to properly notice the request, as Plaintiff fails to provide any authority for the sanctions in its Notice of Motion. (See Rules of Court, rule 2.30(c).) Moreover, Plaintiff’s Memorandum fails to state or discuss the authority upon which its sanctions request is based.

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In The Matter of Jane Marie Dumas

26CV001359

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.